

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rosemary Espinal	Team: Team # 2	CCRB Case #: 201108084	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 06/15/2011 9:08 PM	Location of Incident: Dawson Street and Longwood Avenue	Precinct: 41	18 Mo. SOL 12/15/2012	EO SOL 12/15/2012	
Date/Time CV Reported Wed, 06/15/2011 10:35 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 06/22/2011 2:12 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Mervin Bennett	00255	920019	PBBX
2. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM John Reddy	27561	948410	PBBX
2. POF Cidney Thompson	03725	949728	PBBX

Officer(s)	Allegation	Investigator Recommendation
A. An officer	Force: An officer used physical force against § 87(2)(b)	
B. An officer	Force: Officers hit § 87(2)(b) against a door.	
C. SGT Mervin Bennett	Force: Sgt. Mervin K. Bennet hit § 87(2)(b) against a door.	

Case Summary

On June 15, 2011, Sgt. Mervin Bennett called the Internal Affairs Bureau to file a complaint on behalf of § 87(2)(b) (IAB log # § 87(2)(b)). The complaint was forwarded to the CCRB on June 22, 2011. On June 15, 2011 at approximately 9:08 p.m., PO Cidney Thompson and PO John Reddy arrested § 87(2)(b) who was intoxicated at a park located between Dawson Street and Longwood Avenue in the Bronx. § 87(2)(b)'s arrest worksheet indicated that § 87(2)(b) complained that an officer punched him and hit his head against a van door **(Allegations A and B)**. § 87(2)(b) hit his head on the entrance door of the 41st Precinct stationhouse but has alleged that Sgt. Bennett slammed his face on the door **(Allegation C)**. § 87(2)(b) sustained a laceration to the forehead and was transported to § 87(2)(b), where he received liquid stitches § 87(2)(g). § 87(2)(b)'s arrest report indicated that he is currently homeless, and no phone number was listed for him.

On June 27, 2011, and on June 30, 2011, the undersigned investigator mailed two letters to an address found on the Lexis Nexis database under the name of § 87(2)(b) and the letters were not returned to the CCRB. On July 8, 2011, the undersigned contacted the New York City Department Homeless Services and they confirmed that § 87(2)(b) has not stayed at any of their shelters since § 87(2)(b). Additionally, § 87(2)(b)'s arrest report did not list a phone number or address. A search of the Department of Correction inmate lookup service website confirmed that § 87(2)(b) is not incarcerated. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Team: _____

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Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date